

Sonu v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 September 2018 · Writ - C No. 40097 of 2009 · **Writ disposed; consumer relegated to representation before Executive Engineer.**

HEADNOTE

On a writ against a Tehsildar recovery citation issued for alleged electricity theft, the High Court did not decide whether provisional or final assessment under para 8.1(b) of the U.P. Electricity Supply Code, 2005 had preceded recovery, and disposed of the petition by directing the consumer to represent to the Executive Engineer, who was to consider the claim and pass an order in accordance with law within one month.

FACTUAL SUMMARY

Sonu challenged a Tehsildar recovery citation dated 6 July 2009 issued on an allegation of electricity theft, contending that recovery had been launched without any provisional assessment. On 6 August 2009 the High Court stayed the citation and asked the licensee whether provisional assessment had been served and whether final assessment under para 8.1(b) of the 2005 Supply Code preceded the recovery certificate. Stay was later extended. In 2018 the Court noted the stay had not been continued and the counter affidavit was not on record.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)

theft-recovery-citation

HOLDING

A writ against a Tehsildar recovery citation issued pursuant to alleged electricity theft is disposed of without examining whether provisional or final assessment under para 8.1(b) of the 2005 Supply Code preceded recovery; the consumer may represent to the Executive Engineer, who shall consider the claim and pass an appropriate order in accordance with law within one month. ¶ 1

PRINCIPLE TAGS

no-recovery-without-final-assessment-clause-8.1(b) On a writ against a Tehsildar recovery citation issued for alleged electricity theft, the High Court did not decide whether provisional or final assessment under para 8.1(b) of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PROVISIONAL ASSESSMENT WAS SERVED AND WHETHER FINAL ASSESSMENT UNDER PARA 8.1(B) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS MADE BEFORE THE RECOVERY CERTIFICATE

The 6 August 2009 order called for an explanation on these points; the 14 September 2018 disposal did not decide them.